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Provision of March 13, 2025
Register of provisions
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in G.U.
No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n.
9107633 (hereinafter "Guarantor Regulation No.
1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
operation of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. The complaint.

With a complaint submitted by Ms. XX, it was
alleged that the Mediterranean Hotel Institute of
Pulsano (TA) (hereinafter, "the Institute") had
"published on YouTube [... a video] regarding the
Christmas greetings of the school where the
class" of the complainant's son was also featured, without

the latter having provided any consent for the child to appear on a digital platform, and without her having “been asked to sign any authorization request regarding the publication of the video in question (XX).”

2. The investigative activity.

With a note dated XX (prot. n. XX) responding to the request for information made by this

Authority, the school principal of the Institute stated, in particular, that:

- “preliminarily, it is stated that I, in my capacity as School Principal of the Institute in question, promptly arranged for the removal of the video from the school's YouTube channel”;
- “the well-being of the students is, without a shadow of doubt, a factor that influences not only the way of approaching study but also the enthusiasm for the results obtained; precisely within the class that the son of the current complainant attended (the attendance concluded on XX following a request for clearance), the atmosphere among the students was characterized by deep tensions, also fueled by the behavior of the student”;
- “corrective and constructive actions have been activated, also through the direct involvement of the students, urging them to express their thoughts regarding the dynamics of the class group, thus fostering not only understanding but also recognition of the positive and/or negative emotions experienced by them”;
- “it is necessary to highlight that, regarding the complaints made by the [... complainant], during the photo that depicts her son together with a large group of students from the class to which he belonged, the teacher who managed this activity, after informing the students about the nature and purpose of the activity, asked them who wanted to participate, specifying at the same time that those who had not yet turned fourteen years old would necessarily have to hold the paper over their face; it should be noted that the teacher, in selecting the students, preferred the presence of students who had already turned fourteen years old (in order to be able to obtain consent directly from the interested parties as provided by Article 2 quinquies of the Privacy Code, implementing Article 8, paragraph 1 of Regulation EU No. 679/2016)”;
- “on this occasion, the son of the [... complainant] stated to the teacher that he had already turned fourteen years old and, therefore, wished to participate in the video”;
- “at that point, the teacher, using a particularly clear, simple, concise, and exhaustive language, easily accessible and understandable,

provided the students with all the necessary information, including that regarding the subsequent publication of the video as well as the identity of the data controller, so as to make the consent given by each student meaningful”;

- “the student [...] reiterated the desire to take part in the video and to consent to its subsequent publication”;

- “to confirm what has been said above and, contrary to what was reported by the [...]

video recordings, had not yet turned fourteen years old, although, to be fair, this occurred just a few days later”;

- “none of this could in any way harm the image and/or dignity of any of the participants and, even less so, expose them to any risks, all in full compliance with the principle of minimization of personal data.”

Based on the elements acquired, the Office notified, with a note dated XX (prot. n. XX), the Institute, as the data controller, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5 and 6 of the Regulation and Article 2-ter of the Code, inviting the aforementioned data controller to submit written defenses or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

The Institute submitted its defensive memoranda, with a note dated XX (prot. n. XX), stating, in particular, that:

- “this case concerns common personal data, limited to the image and not special or judicial data, considering that the video clip in question, with a total duration of only 8 seconds out of a total video length of 11 minutes and 25 seconds, did not contain any further indication regarding name, age, class attended, location, or anything else”;

- “the I.P.S.S.E.O.A. Mediterraneo promptly removed the video in question from the school’s YouTube channel as soon as it received the notification of the complaint from [...] claimant], interpreting it as a denial of the use of the personal data of their child”;

- “the images of the student [...] son of the claimant, were processed exclusively in pursuit of the institutional purposes of the school, such as guidance, inclusion, education, and training of students. In this regard, reference is made to the information on the processing of personal data of students and of those exercising parental responsibility, published in the privacy section of the institutional website and available at the links provided in the appendix”;

- “specifically, the video in question features the son of the claimant, along with a large group of his class, never in close-up or exclusive framing, engaged in ‘positive’ moments related to the institutional activities of the school, with the aim of documenting, witnessing, narrating, and enhancing the work carried out and, therefore, for exclusively educational, training, cultural, and personal growth purposes.”;

- “the teacher responsible for the educational activity of producing the video in question, after informing the students of the class group about the nature and purpose of the activity, asked them who would like to participate, specifying at the same time that those who had not yet turned fourteen would necessarily have to hold a sheet over their face for the required anonymization”;

- “furthermore, in selecting the students who were to make up the class group involved in the educational activity of producing the video in question, the teacher identified students who had already turned fourteen, in order to be able to obtain consent directly from those concerned, as provided for by Article 2 quinquies of the Privacy Code, implementing Article 8, paragraph 1 of EU Regulation No. 679/2016”;

- “on this occasion, the son of the claimant stated to the responsible teacher that he had already turned fourteen and, therefore, wished to participate in the video”;
 - “after selecting the participating class group for the educational activity of producing the video in question, which included the student [...] son of the claimant, the responsible teacher, using particularly clear, simple, concise, and exhaustive language, easily accessible and understandable, provided the interested students with all the necessary information, particularly regarding the subsequent publication of the video as well as the identity of the data controller, so as to make the consent given by each student meaningful and asking for confirmation of consent, which was reiterated by the student [...] to confirm the willingness for the subsequent publication of the video in production”;
 - “it is noteworthy that, during the filming of the video in question, the student [...] clearly expressed the desire to show his face during the eight seconds in which he was filmed, lowering the sheet and thereby effectively confirming the desire to make his image visible, not adhering to the invitation made by the responsible teacher to keep the sheet over his face, contrary to what all the other classmates did”;
 - “only following the communication from the GPDP regarding the complaint [...] did it emerge that the student [...] son of the claimant, contrary to what he had stated in the presence of the responsible teacher of the educational activity of producing the video and his classmates during the video recordings, had not yet turned fourteen years old, although, to be fair, this occurred just a few days later.”
- recorded on XX (video published on XX), had not yet turned fourteen years old. Indeed, the student [...] would have turned 14 years old in just eleven days, that is, on XX”;
- “Furthermore, starting from the first communication from the GPDP, the I.P.S.S.E.O.A. Mediterraneo has worked to update and make more effective its technical and organizational measures to ensure the security and compliance of the processing with the provisions of EU Regulation 679/2016 and Legislative Decree 101/2018”;
 - “As for the degree of cooperation with the Authority, it is necessary to highlight in the introduction that there are no previous violations against the I.P.S.S.E.O.A. Mediterraneo, which has, moreover, shown from the beginning a wide willingness to cooperate, in addition to a proactive attitude aimed at preventing the permanence of the images in question and avoiding their further dissemination”;
 - “It is also noted that after removing the video immediately upon becoming aware of the complaint to the GPDP, pursuant to Article 77 of the GDPR, made by Mrs. M.T., the I.P.S.S.E.O.A. Mediterraneo subsequently disabled the YouTube channel. For these reasons, it is not possible to provide a certain figure regarding the views obtained from the video in question, although, considering the historical series of views of the videos published on its YouTube channel, it is reasonable to hypothesize a figure lower than 100 views. This indicator was derived by calculating the ratio between the deleted videos and the total number of views of those videos”;
 - “If the appellant [...] had requested the removal of the images of her son, withdrawn consent, exercised her rights, the I.P.S.S.E.O.A. Mediterraneo would have immediately acted to remove the images, as it promptly did upon notification of the complaint in question by the GPDP.
- Instead, the appellant [...] waited for the procedures for transferring her son to another school to conclude before making a capricious complaint”;
- “All necessary and preventive information has been provided to the interested parties through the link to the Privacy section of the official website of the I.P.S.S.E.O.A. Mediterraneo. The information, in particular, has been drafted in a language easily understandable even by minors and contains, among other things, the essential elements of the processing, the purposes pursued, with the indication that they exclusively pursue the institutional functions necessary to ensure the right to education and training through the provision of educational activities.”

3. Applicable Legislation.

3.1 The Regulatory Framework.

Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, the “Regulation”), defines “personal data” as “any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person” (Article 4, point 1 of the Regulation).

According to the Regulation, the processing of personal data is lawful only if and to the extent that at least one of the conditions listed in Article 6 of the Regulation applies.

In particular, the processing of personal data carried out in the public sector is lawful when it is necessary “for compliance with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (Article 6, paragraph 1, letters c) and e) and paragraphs 2 and 3 of the Regulation; Article 2-ter, paragraph 1 of the Code).

The legal basis for the aforementioned processing must be established by Union or Member State law, which must pursue “a public interest objective [and must be] proportionate to that objective” (Article 6, paragraph 3, of the Regulation).

In this context, it is established that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the Regulation with regard to processing, in accordance with paragraph 1, letters c) and e), specifying more precisely the specific requirements for processing and other measures to ensure lawful and fair processing...” (Article 6, paragraph 2, of the Regulation).

The Code has established that “the legal basis provided for in Article 6, paragraph 3, letter b), of the Regulation consists of a law or regulation or general administrative acts” (Article 2-ter, paragraph 1). In particular, processing operations that consist of the “dissemination” and “communication” of personal data are permitted only when provided for by a law, regulation, or general administrative acts (Article 2-ter, paragraph 3 of the Code).

The data controller is in any case required to comply with the principles regarding data protection, including that of “lawfulness, fairness, and transparency” under which data must be processed lawfully, fairly, and transparently in relation to the data subject (Article 5, paragraph 1, letter a) of the Regulation).

3.2 The processing of personal data carried out by the Institute.

From the assessment carried out, based on the elements acquired and the facts emerged following the activity

****Investigation****

From the investigation, as well as the subsequent evaluations of the Department, it appears that the Institute published a Christmas greeting video on the school's YouTube channel, featuring some students from XX of the Institute, including the claimant's son (art. 4, par. 1, n. 1, of the Regulation).

As previously mentioned, in order for a specific processing of personal data to be lawfully carried out by a public entity, such processing must be necessary for the fulfillment of a legal obligation by the data controller or for the execution of a task of public interest or related to the exercise of public powers and must be based on a provision that has the characteristics referred to in art. 2-ter, c. 1, of the Code.

In this context, the public administration is required to verify, even for common data, the existence of a legal norm, regulation, or general administrative acts that legitimize the dissemination of the personal data of the interested parties.

In this regard, it is noted that the school did not indicate any specific legal basis suitable for legitimizing the dissemination, on the school's YouTube channel, of images of minors featured in the video (see art. 2-ter, paragraph 3 of the Code).

Regarding the alleged consent (art. 7 of the Regulation) expressed by the claimant's son and by the claimant herself, which this Institute considered, in good faith, as a valid basis for the processing in question - while not deeming this legitimacy requirement applicable under art. 7 of the Regulation as a legal basis - the following observations are made, also in order to assess the conduct of this Institute as a whole.

Firstly, it is noted that consent, in general, must be expressed by a major student or by a person exercising parental responsibility over a minor student; for this reason, the Institute's belief that the student had turned fourteen is irrelevant.

It is also observed that the reference to art. 2-quinquies of the Code, which concerns the possibility for individuals who have reached the age of fourteen to express consent to the processing of their personal data in relation to the direct offering of information society services, is also irrelevant.

Furthermore, regarding the expression of will by the mother of the student featured in the video, it is noted that in the aforementioned information provided to the claimant in the enrollment form of her son at the Institute, in the section "Authorization for image processing," it is expressly stated that "the parent/guardian agrees not to raise objections against the publication of any photographs or audio-video recordings, made exclusively in the exercise of institutional functions. Institutional link: [...]". The described processing thus seems to relate to the potential publication of photos or videos on the Institute's institutional website, while the processing concerning the publication on YouTube that occurred in this case is not mentioned.

Moreover, it is observed that this form does not seem to contain a field/flag through which explicit consent for the processing of images and/or videos can be expressed, contrary to what is provided for in art. 7, par. 2 of the Regulation. In this regard, the "Guidelines 5/2020 on consent under Regulation (EU) 2016/679," adopted on May 4, 2020, also state that "the data controller must avoid ambiguity and ensure that the action through which consent is expressed can be distinguished from other actions" (par. 84) and that "if consent must be provided by the parent, it may be necessary to provide a set of information that allows adults to make an informed decision" (par. 126).

In light of the above considerations, it must be concluded that the publication, on the school's YouTube channel, of a Christmas greeting video featuring some students from XX of the Institute, including the claimant's son, has resulted in the dissemination of personal data in the absence of an appropriate legal basis, as such processing does not fall within the public interest purposes attributed to the Institute and no other condition of legality exists, in violation of arts. 5, par. 1, lett. a) and 6, par. 1, lett. c) and e), par. 2 and par. 3, lett. b) of the Regulation and 2-ter, paragraphs 1 and 3, of the Code.

Nonetheless, it is positively noted that the Institute has adopted appropriate measures such as the deletion of the video featuring the students from the YouTube channel once the investigation was initiated.

****4. Conclusions.****

In light of the evaluations mentioned above, taking into account the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under art. 168 of the Code - it is represented that the elements provided by the data controller in the defensive memoranda do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for in art. 11 of the Regulation of the Guarantor n. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Institute is noted, having occurred in the absence of conditions of legality, in violation of arts. 5, par. 1, lett. a) and 6, par. 1, lett. c) and e), paragraphs 2 and 3, letter b), of the Regulation and 2-ter, paragraphs 1 and 3, of the Code. The violation of the aforementioned provisions makes the administrative sanction provided for by Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referenced by Article 166, paragraph 2, of the Code.

Considering, in any case, that the conduct has exhausted its effects, as the Institute has promptly removed the video in which the claimant's child was recorded, the conditions for the adoption of further corrective measures referred to in Article 58, paragraph 2, of the Regulation do not apply.

5. Adoption of the injunction order for the application of the monetary administrative sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose a monetary administrative sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

Considering that the violation of the aforementioned provisions by the Institute occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the monetary administrative sanction does not exceed the amount specified for the most serious violation. Given that, in the specific case, all the established violations – Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e), paragraphs 2 and 3, letter b), of the Regulation and 2-ter, paragraphs 1 and 3, of the Code – are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000 (twenty million/00).

The aforementioned monetary administrative sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

It is believed that, in this specific case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60), considering that:

- with specific regard to the nature, severity, and duration of the violation, it should be noted that the online dissemination of personal data involved minors (cf. Article 83, paragraph 2, letter a), of the Regulation);
- with particular regard to the subjective profile of the violation, it occurred under the erroneous belief by the Institute that it had obtained the consent of the data subjects (Article 83, paragraph 2, letter b), of the Regulation);
- regarding the categories of personal data communicated, no special categories of data are included (Article 83, paragraph 2, letter g) of the Regulation).

In preface, considering that the data controller is a school Institute and, therefore, a subject of small size, the following circumstances must also be taken into account:

- it promptly deleted the video concerning the students once it became aware of the complaint filed (Article 83, paragraph 2, letter c), of the Regulation);
- there are no previous relevant violations committed by the data controller (Article 83, paragraph 2, letter e), of the Regulation);
- the degree of cooperation shown by the data controller with the supervisory authority (Article 83, paragraph 2, letter f) of the Regulation);
- the high accessibility and visibility of the tool used for the described dissemination, given that the YouTube channel is accessible even to those who do not know and do not attend the Institute and, therefore, is more prone to the risk of loss of control over the personal data of the data subjects (Article 83, paragraph 2, letter k), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €2,000.00 (two thousand/00) for the violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e), paragraphs 2 and 3, letter b), of the Regulation and 2-ter, paragraphs 1 and 3, of the Code, as the monetary administrative sanction

deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the specific circumstances of the concrete case, concerning the publication of a video involving minors on the YouTube channel in the absence of a condition of lawfulness.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

declares, pursuant to Articles 57, paragraph 1, letter f), and 83 of the Regulation, notes the illegality of the processing carried out by the Mediterranean Hotel Institute of Pulsano (TA) as outlined in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e), paragraphs 2 and paragraph 3, letter b), of the Regulation and 2-ter, paragraphs 1 and 3, of the Code;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, the Mediterranean Hotel Institute of Pulsano, with its registered office at via Chiesa n. 49, 74026, Pulsano (TA), Tax Code: 90264330730, to pay the total sum of euro 2,000.00 (two thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ORDERS

the Mediterranean Hotel Institute of Pulsano (TA):

- to pay the total sum of euro 2,000.00 (two thousand/00) in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

PROVIDES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, for the publication of the injunction order on the Garante's website; pursuant to Article 17 of the Garante Regulation No. 1/2019, for the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei